

Data Protection Education
Unit 1, Saltmore Farm
Hinxworth
Hertfordshire
SG7 5EZ

15th December 2021

Dear Mr Dring,

We write further to your letter of the 5th December 2021.

Your complaint about redaction undertaken by the schools Solicitor

The school chose to instruct their solicitor in order to comply with their legal obligation to respond to your SAR under GDPR at a time when school resources were stretched as a consequence of dealing with the effects of the Covid 19 pandemic. The legal basis relied upon is Article 6 (1) (c). We asked the school if they objected to you being provided with their solicitor's details and they have confirmed that they do not. The details are Stone King <https://www.stoneking.co.uk/>

Your complaint that the School disclosed data which you considered should have been exempted.

This is a matter for the school to decide as the controller of data that they process. The school took the view that the education exemption did not apply to this data

Your complaint that the school included the confidential data of Sarah Dring.

We can confirm that Sarah was assessed by the school to be competent to exercise her own data rights and that she provided her consent for you and Mrs Dring as her parents to exercise her data rights and have sight of her personal data in order to comply with your SAR.

Your complaint about inaccurate data SAR page 259/260

Following receipt of your letter of the 5th December we requested that the school to review the data in question. The school has confirmed that the data in question comprises a synopsis sent to the Deputy Head to assist her in investigating a complaint made by you. The school has confirmed that this data is an accurate record of safeguarding matters which were reported to

the school by the external agencies that the school are required to work with in order to safeguard the welfare of your daughter Sarah Dring.

If you are concerned that the third parties have inaccurately recorded data that has then been passed on to the school then you should contact those third parties in order to make a request for rectification of the personal data that they hold.

Your complaint about the data on page 259/260 being distributed by email

The email was sent internally using Google Mail and was encrypted both when at rest and in transit.

Your complaint that the 3rd party data of another child was not redacted.

This has been dealt with by us in our letter to you of the 1 December 2021.

Your complaint that your email address was breached on the 7 October 2020 for a stage 4 complaint hearing held by Zoom on the 8th October 2022

As you are aware the processing of your email address was necessary in order for the school to facilitate the complaints which you had made. We note that in both our letters to you of 17 and 23 of March 2021 we sought to explain that the response to the COVID 19 pandemic required schools to consider new ways of working in order to meet their legal obligations to pupils and parents and to continue to support, without interruption, all school processes including the complaints process. The processing of your email address for a stage 4 complaint made by you would in our view be consistent with a task in the public interest under Article 6 (1) (e) given the particular circumstances where the stage 4 complaint had to be held remotely by zoom.

However, following your complaint, in respect of the sharing of your email in a meeting on the 9th March 2021, we can confirm that the school acted upon our advice to use non -email sharing options when available and this matter has been resolved.

Other matters

We hope that we have now finally clarified the GDPR matters that have been of concern to you. We can assure you that as DPO for the school we will continue to work with them to ensure that procedures and processes are in place to support the school to process data in the best way possible so as to enable safe sharing and compliance of the UK GDPR.



We are aware that you are already in contact with the ICO in respect of these matters however I am obliged to inform you that you have the right to make a complaint to the ICO. You may contact them by writing to the Information Commissioner's Office, Wycliffe House, Water Lane, Wilmslow, Cheshire, SK9 5AF; by Telephone on 0303 123 1113; by Fax on 01625 524510; by using the following internet address <https://ico.org.uk/global/contact-us/>; or by email icocasework@ico.org.uk

Yours sincerely,

Mrs C Matin
LLB (Hons)
Barrister
DPE Consultant Data Protection Education